

Tentative Rulings for June 30, 2026
Department 501

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

23CECG00276	<i>James Locke v. Miss Kitty's Lounge</i> is continued to Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.
24CECG01797	<i>Fernando Jacques v. Maxco Supply, Inc.</i> is continued to Thursday, July 2, 2026, at 3:30 p.m. in Department 501.
25CECG03286	<i>Terajee Hakim v. ASM Global, LLC</i> is continued to Thursday, July 2, 2026, at 3:30 p.m. in Department 501.

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Tentative Rulings for Department 501

Begin at the next page

(03)

Tentative Ruling

Re: ***Jamison v. Darrel's Mini Storage***
Case No. 26CU1050

Hearing Date: June 30, 2026 (Dept. 501)

Motion: Plaintiffs' Application for a Temporary Restraining Order

Tentative Ruling:

To deny plaintiffs' application for a temporary restraining order. (Code Civ. Proc., § 526.)

Explanation:

First, there is no proof of service on file showing that defendants have been served with the summons, complaint, or TRO application, so it does not appear that defendants have received notice of the pending case or the application for a TRO. Without proof that defendants were served with the summons, complaint, and TRO application, the court lacks jurisdiction over defendants and it would be a denial of due process to grant the application. Under Code of Civil Procedure section 527, "No preliminary injunction shall be granted without notice to the opposing party." (Code Civ. Proc., § 527, subd. (a).) Therefore, unless plaintiffs filed a proof of service showing that defendants were properly served with the complaint, summons, and application, the court must deny the application for lack of jurisdiction.

In addition, plaintiff Matthew Jamison is not an attorney, so he cannot represent his mother, Carol Ann Jamison. While Matthew states that he has a power of attorney to act on his mother's behalf, the power of attorney does not give him the right to act as her attorney in the case since he is not a licensed attorney.¹ He can represent himself in pro per, but he cannot represent his mother. She would need to either retain an attorney or represent herself.

Also, since Matthew has not alleged any facts showing that he was personally harmed by the alleged fraud and conversion of the RV, it is not clear that he has standing to bring any claims on his own behalf. It appears that Carol is the only person with standing to bring a claim for taking the RV, since she is the sole owner of the RV and the only one who was harmed by defendants' alleged misconduct.

Furthermore, it does not appear that plaintiffs have shown that they will suffer irreparable harm sufficient to justify issuing a TRO or preliminary injunction here. Under

¹ Matthew also fails to attach a copy of the power of attorney, so he has failed to show that he is even authorized to sign documents or take other actions on behalf of his mother. In addition, while he claims that his mother suffered a severe stroke that left her with diminished mental capacity, he has not provided any medical records to show that his mother is incapable of representing her own interests.

Code of Civil Procedure section 526, subdivision (a) an injunction may be granted in the following cases:

- (1) When it appears by the complaint that the plaintiff is entitled to the relief demanded, and the relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually.
- (2) When it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action.
- (3) When it appears, during the litigation, that a party to the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party to the action respecting the subject of the action, and tending to render the judgment ineffectual.
- (4) When pecuniary compensation would not afford adequate relief.
- (5) Where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief.
- (6) Where the restraint is necessary to prevent a multiplicity of judicial proceedings.
- (7) Where the obligation arises from a trust.

"This court has traditionally held that trial courts should evaluate two interrelated factors when deciding whether or not to issue a preliminary injunction. The first is the likelihood that the plaintiff will prevail on the merits at trial. The second is the interim harm that the plaintiff is likely to sustain if the injunction were denied as compared to the harm that the defendant is likely to suffer if the preliminary injunction were issued. [Citations.]" (*IT Corp. v. County of Imperial* (1983) 35 Cal.3d 63, 69-70.)

"The more likely it is that plaintiffs will ultimately prevail, the less severe must be the harm that they allege will occur if the injunction does not issue. Further, 'if the party seeking the injunction can make a sufficiently strong showing of likelihood of success on the merits, the trial court has discretion to issue the injunction notwithstanding that party's inability to show that the balance of harms tips in his favor.'" (*Right Site Coalition v. Los Angeles Unified School Dist.* (2008) 160 Cal.App.4th 336, 338-39, citations omitted.)

Generally speaking, an injunction will not issue to prevent breach of a contract, or where the plaintiff can be adequately compensated through money damages. (Code Civ. Proc., § 526; *West Coast Construction Co. v. Oceano Sanitary Dist.* (1971) 17 Cal.App.3d 693, 700.) Plaintiffs must show that they would suffer irreparable harm if the injunction is not issued, and that money damages would not adequately compensate them for their injuries. "The concept of 'irreparable injury' which authorizes the interposition of a court of equity by way of injunction does not concern itself entirely with injury beyond the possibility of repair or beyond possible compensation in damages. Rather, by definition, an injunction properly issues in any case where 'it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief.' (Civ. Code, § 3422.)" (*Wind v. Herbert* (1960) 186 Cal.App.2d 276, 285, citation omitted.) Also, a party is not entitled to an injunction in a case where he has a plain, speedy, and adequate remedy at law. (*Richards v. Kirkpatrick* (1879) 53 Cal 433.)

Where party has an adequate remedy at law he may not resort to court of equity for injunctive relief. (*North Side Property Owners' Assn. v. Hillside Memorial Park* (1945, Cal App) 70 Cal App 2d 609.)

Here, the only harm that plaintiffs are seeking to prevent is the loss of the subject RV at a sale or auction. Plaintiffs claim that defendants took the RV through fraud, undue influence, and financial elder abuse, as they took advantage of Carol's diminished mental capacity to persuade her to sell them the RV for less than it is worth, and then failed to pay her as promised.

Yet such allegations do not show that plaintiffs will suffer irreparable harm, as it appears that plaintiffs can be adequately compensated for the loss of the RV through money damages. In other words, plaintiffs have a plain, speedy, and adequate remedy at law, as they can calculate their damages based on the value of the RV. Plaintiffs have not alleged any facts showing that the RV is so unique or valuable that money damages would not be adequate to compensate them for its loss. Also, it appears that plaintiffs are alleging that defendants breached the contract with Carol by failing to pay her for the RV. Injunctions will not issue to prevent a breach of contract, or where money damages will adequately compensate the plaintiffs for their loss. (Code Civ. Proc., § 526; *West Coast Construction Co. v. Oceano Sanitary Dist.*, *supra*, 17 Cal.App.3d at p. 700.) Therefore, the court intends to deny the application for a temporary restraining order.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 06/29/26
(Judge's initials) (Date)

(20)

Tentative Ruling

Re: **Sanchez v. General Motors LLC**
Superior Court Case No. 24CECG04136

Hearing Date: June 30, 2026 (Dept. 501)

Motion: By Plaintiff to Tax Costs

Tentative Ruling:

To grant in part and tax costs in the sum of \$95.90, reducing defendant General Motors LLC's ("GM") recoverable costs to \$935. (Cal. Rules of Court, rule 3.1700(b), Code Civ. Proc., § 1033.5.)

Explanation:

Under Code of Civil Procedure section 1032, subdivision (b), "a prevailing party is entitled as a matter of right to recover costs in any proceeding."

The losing party may dispute any or all of the items in the prevailing party's costs memorandum by a motion to strike or tax costs. (See Cal. Rules of Court, Rule 3.1700(b).)

If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.

(*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.)

Both parties are frustratingly vague and sloppy in their filings in connection with this motion. Defendant GM filed a Memorandum of Costs that does not include the worksheet, and neither party includes the worksheet with their filings, making it more difficult and time-consuming to evaluate this motion than it should be. And GM's memorandum of costs places items of costs in the wrong categories. GM does not dispute that its costs are in the wrong categories, but doesn't acknowledge it either. Plaintiff's motion to tax costs does not comply with Rules of Court, rule 3.1700(b)(2), which provides that "the motion to strike or tax costs **must** refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs and must state why the item is objectionable." (Emphasis added.) Plaintiff's notice of motion never specifies what items or in what amount he seeks to tax GM's costs. The motion (including the points and authorities) never identifies any specific item numbers.

If the items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. (*Ladas v. California State Automobile Ass'n* (1993) 19 Cal.App.4th 761, 774-776; *Bender v. County of Los Angeles*

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Tentative Ruling

Re: ***Espino v. Forty Niners Stadium Management Company, LLC***
Superior Court Case No. 25CECG05376

Hearing Date: June 30, 2026 (Dept. 501)

Motion: by Defendant to Transfer Venue

Tentative Ruling:

To grant Defendant Forty Niners Stadium Management Company, LLC's motion to transfer venue to Santa Clara County Superior Court. (Code Civ. Proc., § 397, subd. (a).)

Explanation:

On timely motion, the court must order a transfer of an action "when the court designated in the complaint is not the proper court." (Code Civ. Proc., §§ 396, subd. (b), 397, subd. (a).) The burden is on the moving party to establish whatever facts are needed to justify transfer. Normally this requires affidavits or declarations containing admissible evidence. But the court may also consider facts alleged in the moving party's verified complaint if uncontroverted by opposing affidavits. (*Mission Imports, Inc. v. Superior Court* (1982) 31 Cal.3d 921, 929.)

Under Code of Civil Procedure section 395, subdivision (a), "[i]f the action is for injury to person or personal property or for death from wrongful act or negligence, the superior court in either the county where the injury occurs ... or the county where the defendants, or some of them reside at the commencement of the action, is a proper court for the trial of the action." (Code Civ. Proc., § 395, subd. (a).)

Here, plaintiff Edgar Salazar Espino is bringing an action alleging violations of his civil rights, battery, and negligence and plaintiffs Ailynn Alessandra Martinez and minors Ailynn Marie Espino and Edgar Elijah Espino are bringing related claims for negligent infliction of emotional distress. (See FAC generally.) The incident giving rise to plaintiffs' damages is alleged to have occurred at Levi's Stadium in Santa Clara, California. (FAC, ¶ 9.)

Defendant Forty Niners Stadium Management Company, LLC moves for an order transferring this action to Santa Clara County. As alleged in the First Amended Complaint, the incident giving rise to the plaintiffs' damages occurred in Santa Clara, California located in Santa Clara County. Further, defendant Forty Niners Stadium Management Company, LLC has its principal place of business located in Santa Clara, California. (RJN,

Ex. A².) Defendant has met its burden to show the proper venue for the action is Santa Clara County. Defendant is entitled to have the action tried in Santa Clara County.

Plaintiffs have not opposed the motion.

Accordingly, the court intends to grant the motion to transfer venue to Santa Clara County.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on -6/29/26
(Judge's initials) (Date)

² Defendant's Request for Judicial Notice of its Statement of Information filed with the California Secretary of State is granted.

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Tentative Ruling

Re: ***EBF Holdings, LLC v. Sulakhan Singh***
Superior Court Case No. 24CECG05085

Hearing Date: June 30, 2026 (Dept. 501)

Motion: By EBF Holdings, LLC dba Everest Business Funding for
Summary Judgment or, in the Alternative, Summary
Adjudication

Tentative Ruling:

To deny the plaintiff's motion for summary judgment, and the alternative motion for summary adjudication, without prejudice. (Code Civ. Proc., § 437c.)

Explanation:

On November 20, 2024, Plaintiff, EBF Holdings, LLC dba Everest Holdings, LLC, (Plaintiff or EBF) filed the operative complaint against Defendant North East Business Management, Inc., a California Corporation (Defendant Company) and its guarantor, defendant Sulakhan Singh, an individual (Defendant Guarantor), containing six causes of action against both named defendants except as noted: (1) breach of Revenue Based Financing Agreement (Purchase Agreement - against Defendant Company only); (2) fraud; (3) negligent misrepresentation; (4) violation of unfair competition law; (5) claim and delivery; and (6) breach of guaranty (against Defendant Guarantor only).

Defendant Guarantor answered the complaint, in propria persona, on behalf of both Defendant Guarantor and Defendant Company. The court granted Plaintiff's motion to strike Defendant Company's answer because a self-represented litigant cannot represent a corporation. Plaintiff then requested entry of Defendant Company's default, which was entered on May 27, 2025. Plaintiff now moves for summary judgment or summary adjudication.

Plaintiff Fails to Satisfy the Initial Burden of Persuasion and Production

Code of Civil Procedure section 437c provides that summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c).) A plaintiff may move for summary judgment when the plaintiff contends there is no defense to the cause of action. (Code Civ. Proc., § 437c, subd. (a).) A plaintiff meets the burden of showing there is no defense by proving each element of the cause of action. (Code Civ. Proc., § 437c, subd. (p)(1).) The burden then shifts to the defendant to show that a triable issue of one or more material facts "exists as to that cause of action or a defense thereto." (*Ibid.*)

A plaintiff moving for summary judgment is not required to disprove each defense asserted by the defendant in addition to proving each element of the plaintiff's own cause of action. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853 [California law "no longer requires a plaintiff moving for summary judgment to disprove any defense asserted by the defendant as well as prove each element of [plaintiff's] own cause of action"] (*Aguilar*).) Thus, a defendant cannot rely upon the allegations or denials of its own pleadings to show that a triable issue of material fact exists, but instead must set forth specific facts. (Code Civ. Proc., § 437c, subd. (p)(1).) The trial court must "carefully scrutinize the moving party's papers and resolve all doubts regarding the existence of material, triable issues of fact in favor of the party opposing the motion." (*Connelly v. County of Fresno* (2006) 146 Cal.App.4th 29, 36.)

Summary Judgment

A motion for summary judgment is generally directed toward an entire action or pleading. (Code of Civ. Proc., § 437c, subd. (a).) By comparison "[a] party may move for summary adjudication as to one or more causes of action within an action" (Code Civ. Proc., § 437c, subd. (f)(1).) If a moving party fails to meet its initial burden, the trial court should stop its analysis and deny the motion for summary judgment. (See *Hedayati v. Interinsurance Exchange of the Automobile Club* (2021) 67 Cal.App.5th 833, 846 [if defendant fails to address issue raised in complaint, it fails to meet its initial burden and therefore fails to shift burden to opposing plaintiff].)

Here, the complaint includes a fifth cause of action for claim and delivery. Plaintiff fails to address the fifth cause of action in its moving papers. Of course, Plaintiff may dismiss the claim and delivery cause of action, but the court is unable to locate confirmation that Plaintiff has done so before filing its motion for summary judgment. Therefore, the court denies the motion for summary judgment.

Summary Adjudication

Plaintiff moves, in the alternative, for summary adjudication of the second through fourth and the sixth causes of action. In its separate statement, Plaintiff relies on the same set of 18 facts for each cause of action it challenges. Several of Plaintiff's facts lack evidentiary support.

For example, in its separate statement, Plaintiff states Defendant Company's agent and guarantor, Defendant Littleton executed the Purchase Agreement. (Fact No. 1.) Plaintiff's supporting evidence fails to mention a "Defendant Littleton." In Fact No. 3, Plaintiff states the Purchase Agreement was for the sale of \$60,000 of Defendant Company's future accounts receivable for the purchase price of \$40,000. Plaintiff's supporting evidence lists the future accounts receivable amount as \$57,200. (Goldberg decl., ex. 3, request for admission (RFA) 8 [MSJ 27].) Fact No. 7 includes a statement that Defendant Guarantor never intended to pay the \$60,000. Fact No. 7 is not supported by the cited RFA 19, which provides, Defendant Guarantor "never intended for EBF to collect the \$57,200.00 in receivables."

Fact No. 5 states, "Defendant Guarantor failed to make Defendant Company's accounts receivable available to Plaintiff under the Purchase Agreement on

